

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW,  
AVERS LOGISTICS LTD,  
CJ DELUZ NIGERIA LTD.

Complainants,

vs.

**VERIFIED ANSWER**

MARINE TRANSPORT LOGISTICS, INC.,  
ALLA SOLOVYEVA,  
RAYA BAKHIREV.

Respondents.

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Marine Transport Logistics, Inc., (hereinafter "MTL"), Alla Solovyeva (hereinafter "Ms. Solovyeva"), and Raya Bakhirev (hereinafter "Ms. Bakhirev"), by their attorney, Garry Pogil, respond to the verified complaint as follows:

**Preamble**

Denied.

**Complainants**

1. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.
2. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.
3. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

4. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

Respondents

5. Admit.
6. Admit.
7. Admit.
8. Admit.
9. Admit.
10. Admit.
11. Admit. However, not all “day-to-day activities” were supervised by Ms. Solovyeva.
12. Denied.
13. Admit.
14. Denied.
15. Admit. However, the characterization that Ms. Bakhirev was a “specialist” is denied.
16. Admit.
17. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint and respectfully refer all questions of law to the Court.
18. Denied. All questions of law are respectfully referred to the Court.
19. Respondents deny knowledge or information sufficient to form a belief as to this allegation.
20. Admit.

21. Denied as written. MTL arranged for pick up of vehicles from auto auctions. Upon information and belief, air freight services were not provided. As to the items numbered 1 to 13 under this allegation, the following is the response. Number 13 is denied. Upon information and belief, number 6 is denied.
22. Respondents cannot admit or deny the allegation as written because such allegation is vague as to the time frame. For example, Ms. Solovyeva, on or about April 10, 2018, would not provide new rates requested by Mr. Chinedu due to unpaid balances.
23. Denied.
24. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint and respectfully refer all questions of law to the Court.
25. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint and respectfully refer all questions of law to the Court.

Jurisdiction

26. Denied. All questions of law are respectfully referred to the Court.
27. Denied.
28. Admit insofar as MTL is a Non-Vessel Operating Common Carrier, licensed by the Federal Maritime Commission. However, the following statement is denied: "and thus falls under the jurisdiction of the Commission." It is not clear what type of jurisdiction is alleged in this paragraph, and in any case, jurisdictional inquiries are questions of law for the Court to determine.

Factual Background

29. Denied, except admit that Alla Solovyeva and MTL are engaged in the business of exporting used cars, motorcycles, and other cargo.
30. Denied, except admit as follows: Ms. Solovyeva and MTL are in the business of providing such services as authorized by the Federal Maritime Commission, pursuant to MTL's license. Additionally, MTL shipped a number of Complainants' automobiles from the United States to ports abroad.
31. Admit. All questions of law are respectfully referred to the Court.
32. Admit.
33. Admit, except deny the characterization of "like any other customer."
34. Denied, and all questions of law are respectfully referred to the Court.
35. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint and respectfully refer all questions of law to the Court.
36. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint and respectfully refer all questions of law to the Court.
37. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint and respectfully refer all questions of law to the Court.
38. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint and respectfully refer all questions of law to the Court.
39. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint and respectfully refer all questions of law to the Court.
40. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint and respectfully refer all questions of law to the Court.

41. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint and respectfully refer all questions of law to the Court.
42. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.
43. Admit.
44. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint and respectfully refer all questions of law to the Court.
45. Denied.
46. Denied.
47. Denied.
48. Denied.
49. Denied as to Ms. Bakhirev. Admitted as to MTL with the following addition: MTL arranged for trucking of the vehicles, on behalf of the complainants to the warehouses .
50. Denied.
51. Denied.
52. Denied.
53. Denied.
54. Denied as to Ms. Bakhirev in its entirety. Admitted as to MTL only to (a)-(e), (g), (h) and (i).
55. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint and respectfully refer all questions of law to the Court.

56. Denied if the insinuation of this allegation is that the Complainants notified the Respondents that such cars were “destined for export abroad.”
57. Denied.
58. Respondents deny knowledge or information sufficient to form a belief as to this allegation.
59. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.
60. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided as part of the verified complaint.
61. Denied.
62. Denied.
63. Denied.
64. Denied.
65. Denied.
66. Denied.
67. Denied.
68. Denied.
69. Denied.
70. Denied.
71. Denied.
72. Denied.
73. Denied.

74. Denied.

75. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided as part of the verified complaint.

76. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided as part of the verified complaint.

77. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided as part of the verified complaint.

78. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided as part of the verified complaint.

79. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided as part of the verified complaint.

80. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

81. Denied.

82. Denied.

83. Denied.

84. Denied.

85. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.
86. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided as part of the verified complaint.
87. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email or any attachment to such were provided as part of the verified complaint.
- 88-99. Respondents deny knowledge or information sufficient to form a belief as to these allegations. No copies of the referenced documents were provided to the verified complaint.
100. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email/documents were provided as part of the verified complaint.
101. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided as part of the verified complaint, except that upon information and belief, a statement of account was requested.
102. Denied.
103. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

104. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided with the complaint.

105. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided with the complaint.

106. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided with the complaint.

107. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

108. Denied.

109. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided with the complaint.

110. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided with the complaint.

111. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided with the complaint.

112. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided with the complaint.
113. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided with the complaint.
114. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned confirmation were provided with the complaint.
115. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided with the complaint.
116. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided with the complaint.
117. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided with the complaint.
118. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.
119. Denied.
120. Denied.

121. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no copies of the mentioned email were provided with the complaint.

122. Denied.

123. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

124. Denied.

125. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

126. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

127. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint. Upon information and belief, the Complainants abandoned this vehicle.

128. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint. Upon information and belief, the Complainants abandoned this vehicle.

129. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint. Upon information and belief, the Complainants abandoned this vehicle.

130. Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint. Upon information and belief, the Complainants abandoned these vehicles.

131.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

132.Denied.

133.Denied.

134.Denied.

135.Upon information and belief, the Complainants abandoned these vehicles.

136.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

137.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

138.Denied.

139.Denied.

140.Admit that such an email was sent. The allegation omits the balance of such conversation.

141.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no referenced attachment was provided with this complaint. Additionally, any attachment speaks for itself.

142.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

143.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

144.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

145.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

146.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

147.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

148.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

149.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

150.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

151.Denied.

152.Denied.

153.Admit, however, similar to the previous quotes, not the whole conversation is provided.

154.Admit, however, similar to the previous quotes, not the whole conversation is provided.

155.Admit.

156.Admit that the Bill of Lading was attached and such document speaks for itself.

157.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

158.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

159.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

160.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

161.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint.

162.Denied.

163.Denied.

164.Denied.

165.Admit.

166.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no referenced attachment was provided with this complaint. Additionally, any attachment speaks for itself.

167.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no referenced attachment was provided with this complaint. Additionally, any attachment speaks for itself.

168.Denied.

169.Respondents deny knowledge or information sufficient to form a belief as to this allegation in the complaint as no referenced attachment was provided with this complaint. Additionally, any attachment speaks for itself.

170.Denied.

171.Denied.

172.Denied.

Respondents explicitly deny all of the assertions and legal conclusions that follow allegation #172, which conclude on page 36 of the verified complaint.

#### AFFIRMATIVE DEFENSES

1. The complaint fails to state a valid cause of action against the Respondents under the Shipping Act.
2. The relief sought by the Complainants is barred by the doctrine of laches.
3. The relief sought by the Complainants is time-barred by the applicable statute of limitations.
4. The relief sought by the Complainants is barred, in whole or in part, because any damages resulted from the Complainants' own negligence, such as failure to give clear instructions, failure to follow through with the instructions given, failure to pay outstanding charges owed by the Complainants to MTL, and abandonment of the vehicles.
5. Respondents should be awarded attorney fees.

Dated: August 26, 2020

By: Garry Pogil, Esq. 

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Verification

I, Alla Solovyeva, as the President of the Marine Transport Logistics, Inc., have read the foregoing Verified Answer with Affirmative Defenses and know the contents thereof, and the same are true to the best of my knowledge, except for those matter therein which are stated to be alleged upon information and belief, and as to such matters, I believe them to be true.

I declare under penalty of perjury that the foregoing is true and correct.

Dated:

Alla Solovyeva

Alla Solovyeva

Oksana Khanzhina

Notary Public



Verification

I, Raya Bakhirev, have read the foregoing Verified Answer with Affirmative Defenses and know the contents thereof, and the same are true to the best of my knowledge, except for those matter therein which are stated to be alleged upon information and belief, and as to such matters, I believe them to be true.

I declare under penalty of perjury that the foregoing is true and correct.

Dated:

Baxh

Raya Bakhirev

Oksana Khanzhina

Notary Public

